

(29)

Tentative Ruling

Re: ***Regions Bank v. M & D Brothers Logistics, Inc.***
Superior Court Case No. 24CECG03707

Hearing Date: June 10, 2026 (Dept. 403)

Motion: Motion to withdraw

**If oral argument is timely requested, it will be entertained on
Wednesday, June 17, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/9/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Rosemarie Lopez Perez v. J D Home Rentals**
Superior Court Case No. 25CECG05598

Hearing Date: June 10, 2026 (Dept. 501)

Motion: By Defendant to Strike the Complaint

**If oral argument is timely requested, it will be entertained on
Wednesday, June 17, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To find JDB Properties, Inc.'s motion to strike the Complaint moot and take off calendar. (Code Civ. Proc., §436.)

Explanation:

A party may amend their pleading without leave of court in response to a motion to strike if the motion has not been heard and served no later than the date for filing an opposition to the motion to strike, unless otherwise stipulated. (Code Civ. Proc., § 472, subd. (a).) The right to file an amended pleading during this time includes the right to file an amended complaint to add new parties. (*Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 676.) Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.)

The sole issue of defendant JDB Properties, Inc.'s ("Defendant") motion to strike the Complaint was that plaintiff Rosemarie R. Lopez Perez ("Plaintiff") failed to name JDB Properties, Inc. as a party, and instead named JD Home Rentals, Inc. as the sole defendant. Plaintiff has since filed a First Amended Complaint naming JDB Properties Inc. as the sole defendant. Plaintiff's First Amended Complaint was filed and served timely under Code of Civil Procedure section 472, subdivision (a). Accordingly, Defendant's motion is rendered moot, therefore, the hearing is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/9/2026.
(Judge's initials) (Date)